

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 22, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White (via Zoom). Absent: Mr. Johnson. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 8, 2024. Motion (per Consent Agenda) carried.

ORDINANCE –3rd READING – Amending Section 10.16.150, Parking Violation Hearings and Appeal Procedures, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the procedures governing the Administrative Review of Parking Citations, making conforming amendments and repealing an obsolete provision. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4581)

ORDINANCE –3rd READING – Creating Section 10.60.015, Paid On-Street Parking Districts; Establishment, Administration, of the Municipal Code of the City of Cheyenne, Wyoming, establishing the Paid On-Street Parking Districts Program and making conforming amendments as specified. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated July 10, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Public comment was made by: Jared Schaefer. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel and Mr. Segrave (#4582)

[CA] RESOLUTION – Certifying compliance with Wyoming Statute § 15-1-402 for the City-initiated annexation of tracts of land situate in portions of Sections 4 and 5, T13N, R67W, 6th P.M., Laramie County, Wyoming (also known as ‘North Range Business Park’, located northwest of the I-80 and Roundtop Road interchange). Motion (per Consent Agenda) carried. (#6418)

[CA] RESOLUTION – Expressing the support of the Governing Body for the submission of a petition by the Governing Body to the Downtown Development Authority for inclusion of property in the Downtown Development District. Motion (per Consent Agenda) carried. (#6419)

[CA] RESOLUTION – Supporting the Clean Crow Creek Initiative on behalf of the Governing Body for the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsors – Dr. Aldrich, Dr. Rinne, Mr. Roybal, and Mr. White)

[CA] RESOLUTION – Amending the City of Cheyenne 2023 Program Year Annual Action Plan, prepared by the Cheyenne Housing & Community Development Office – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Authorizing submission of an application to the Wyoming State Loan and Investment Board for a loan from the Wyoming Drinking Water State Revolving Fund for the Hypochlorite Generation Project in the amount of four million dollars and authorizing the Director of the Board of Public Utilities to execute the application and all related documents – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) for Fiscal Year Ending June 30, 2025. (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$400,000.00). (#8010)

[CA] Juvenile Housing Agreement between the City of Cheyenne and Laramie County for the housing of juvenile detainees in the Laramie County Juvenile Services Center located at the Archer Complex (General Fund). Motion (per Consent Agenda) carried. (#8011)

[CA] Contract between the City of Cheyenne, Laramie County Sheriff's Department and Laramie County for housing prisoners at the Laramie County Detention Center (General Fund). Motion (per Consent Agenda) carried. (#8012)

Improvement Agreement between the City of Cheyenne and Brakes Plus, LLC for Pedestrian Connectivity Improvements Cash-In-Lieu of Right-Of-Way Improvements for development of a Brakes Plus. Reporting for Finance Committee, Dr. Aldrich moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body present. Comment was made by the following member of the governing body: Dr. Rinne (#8013)

Land Lease between the City of Cheyenne and Swan Ranch Cheyenne Rail, L.L.C. which supersedes and replaces the Railcar Storage Agreement, City Contract #7665, by and between Cheyenne Rail Hub, LLC. Dr. Aldrich moved to approve, seconded by Mr. Esquibel. Motion carried. Voting "yes" – all members of the governing body present with the exception of Dr. Aldrich voting "no". (#8014)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide probation/diversion services to youth appearing in both the Laramie County Circuit Court and the Municipal Court for the City of Cheyenne (Revenue to the City) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Laramie County to provide services to the Laramie County Juvenile Crisis Shelter (Revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #1 for the Cheyenne Transmission, Pump Station and Tank 2020 Project Agreement. (Drinking Water SRF and Wyoming Water Development and ARPA Grants). Motion (per Consent Agenda) carried. (#8015)

[CA] Consideration of Bid #S-17-24 for an Agreement between the City of Cheyenne and Miller & Sons Construction, Inc. for the 2024 Miscellaneous Concrete Project (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$835,089.40). (#8016)

[CA] Consideration of Bid #S-23-24 for an Agreement between the City of Cheyenne and Streamline Markings for the 2024 Epoxy Striping Project (2023-2026 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$198,921.00). (#8017)

[CA] Consideration of Bid #E-21-24 for or one (1) new 2024 to 2026 Low Ground Pressure/Waste Handling Dozer (42,000 lb min. operating weight) for the Landfill Division (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$593,506.00).

[CA] Consideration of Bid #E-22-24 for one (1) new 2024 to 2026 Low Ground Pressure/Waste Handling Dozer (50,000 lb min. operating weight) for the Landfill Division (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$820,267.00).

[CA] Consideration of Bid #E-18-24 for SCBA (Self Contained Breathing Apparatus) Compressors for Cheyenne Fire Rescue (Homeland Security, Assistance to Firefighters Grant) – referred to Finance Committee.

[CA] Consideration of Bid #S-29-24 for an Agreement between the City of Cheyenne and Miller and Sons Construction, Inc. for the Vandehei Repair and Restoration Project (General Fund Reserves) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held August 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for 307 Racing Management, Inc. d/b/a 307 Racing, 3310 Ridge Road, Cheyenne, WY (license currently held by Keg, Inc d/b/a D.T.’s Liquor Mart & Tusker Bar).

Announcement was made of a Public Hearing to be held August 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statue § 15-1-402 exist for about 8.80 acres of land located west of Converse Avenue and north of Dell Range Blvd.

Announcement was made of a Public Hearing to be held August 12, 2024 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statue § 15-1-402 exist for about .035 acres of land located east of US 30 and north of and adjacent to E. Pershing Blvd.

Public comment was made by the following under Other Business: Dan Brown.

The following members of the governing body made comments under Other Business: Mr. Segrave, Dr. Rinne and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 12:25 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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